

		seq., also known as the Partition of Real Property Act (the “Act”). The Act “applies to actions for partition of real property <u>filed on or after January 1, 2023</u>” (Code Civ. Proc., § 874.311(c), emphasis supplied) and includes a procedure by which cotenants may buy out the interests of the cotenant requesting partition by sale. The Act does not appear to apply here, as this action was filed on 5/24/22, i.e., this action was <u>filed before January 2023</u>. Instead, the sale procedures set forth in Code of Civil Procedure sections 873.510 et seq. apply to this partition sale, as reflected in the Interlocutory Judgment issued 7/28/25. <i>Status Conference</i> <i>No Tentative.</i>
8	Audenis vs. patrickaudenis.com	<u>Motion for Order Authorizing Limited Early Discovery</u> The court DENIES Plaintiff PATRICK AUDENIS’s motion for a court “order authorizing limited early discovery for the purpose of identifying the anonymous Doe defendant(s) in this action.” It remains unclear why Plaintiff needs to have an order from this court to have discovery. (See 1/30/26 and 4/17/26 Minute Orders.) Generally, a plaintiff does not need leave of court to serve subpoenas on third parties. Any discovery “stay” at the outset of an action applies to parties, not nonparties. Discovery holds and cutoffs do not restrict a party’s ability to conduct informal investigations, including contacting nonparty witnesses, obtaining public records, or otherwise gathering information from third parties (See <i>Pullin v. Superior Court</i> (2000) 81 Cal.App.4th 1161, 1165, fn. 4; <i>County of Los Angeles v. Superior Court</i> (2000) 82 Cal.App.4th 819, 829.) As Plaintiff is currently self-represented, he cannot himself issue a subpoena. The only persons authorized by law to